



DECISION

Complaint No. : POS/8894/2023/KM/KW

Name and address of the complainant : Mr. Muhammad Sadiq, House No.L-629, Khuda ki Basti, Phase II, Surjani Town, Karachi.

Name of the Agency Complained against : Director, Anti-Encroachment Cell, Malir Development Authority, Karachi.

Name & Designation of Investigating Officer : Mr. Aftab Ahmad Khatri, Director, Regional Office, Keamari (west).

Vetted by : Mr. Muhammad Naseer Jamali, Advisor-N

Subject : **COMPLAINT AGAINST PROJECT INCHARGE SAIBAN ALLEGING ILLEGAL CONSTRUCTION ON COMMERCIAL PLOTS, L-106 AND L-107, KHUDA KI BASTI, KARACHI.**

COMPLAINT

Mr. Muhammad Sadiq filed a complaint dated 01.11.2023 wherein he stated that a project of "Khuda ki Basti" had come into existence in the year-1992 where all the plots were demarcated for 80 sq. yards. A NGO, named Saiban has sold two commercial plots, measuring 80 sq. yards each, L-106 and L-107. The construction is being raised on 100 and 120 sq. yards instead of actual size of plot of 80 sq. yards. Aggrieved by that, he solicited intervention of this Institution.

PROCEEDINGS

2. The complaint was admitted under Section 10 of the Establishment of the Office of Ombudsman for the Province of Sindh Act, 1991 (amended up to date) after receiving mandatory affidavit on Form-A and by condoning the delay.
3. This office issued a notice vide letter dated 27.11.2023 to the Deputy Inspector General of Police, West Zone, Karachi for report. In response, the Station House Officer, Police Station, Surjani town Karachi informed vide letter dated 09.12.2023 that the matter pertains to Malir Development Authority.
4. This office issued a notice to the Director, Anti-encroachment Cell, Malir Development Authority, Karachi for report vide letter dated 08.01.2024, followed by reminders but no response received. This office issued summons against the Director, Anti-Encroachment Cell, MDA dated 07.04.2025 but he did not respond. Subsequently, Bailable Warrants against the Director, Anti-Encroachment Cell, MDA were issued vide letter dated 30.06.2025 who appeared before Investigation Officer on 14.07.2025 and the case was heard. Subsequently, the Director, Anti-Encroachment Cell, MDA informed vide letter dated 15.08.2025 that the matter has been resolved. He informed that the plot No:106 is a corner plot which has been measured to be 96 sq yards commercial plot.
5. The agency's report was sent to the complainant for rejoinder vide letter dated 22.08.2025, followed by reminders but he did not respond.

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DECISION

6. In view of the above and in exercise of powers vested in me under Section 11 of the Establishment of Office of Ombudsman for the Province of Sindh Act, 1991 (amended to date), the complaint is disposed of on account of non-prosecution.

Given under my hand and seal of the office



Sd /-
(MUHAMMAD SOHAIL RAJPUT)
Sitara-e-Imtiaz. PAS
Ombudsman, Sindh
Karachi, dated 12th November, 2025

